

State Vs. Akash Haridas Katare
FIR no. 538/2024
PS Special Cell

ANUJ KUMAR SINGH
Chief Judicial Magistrate,
26 G.F. Annexe Building
Patiala House Courts
New Delhi

22.01.2025

This is an application for grant of bail u/s 480 BNSS moved on behalf of applicant/ accused Akash Haridasbhai Katare S/o Haridas Katare.

Present: Ld. APP for the State.
Sh. Santosh Singh Barthwal, Ld. Counsel for applicant/
accused.

Arguments has already been heard.

It has been submitted on behalf of accused that the accused was arrested in the present case on 06.12.2024 and since then he is running in custody. It is further stated that applicant/ accused has been wrongly framed in the present case and has nothing to do with the alleged offence. It is stated that applicant/ accused is very poor person aged about 25 years and is only earning member of his family. It is further stated that applicant/ accused is not involved in any other criminal case. It is further stated that applicant/ accused is ready to abide by all terms and conditions imposed upon him. It is submitted by Ld. Counsel that bail is rule and jail is exception and applicant/ accused are victim in the present case and they be enlarged on bail. It is further submitted that during arrest, no ground of arrest was supplied to the accused in violation of guidelines of Hon'ble Supreme Court and Hon'ble High Court.

On the other hand, it has been contended by the Ld. APP for State and IO that the complainant Arun Kumar Jain was cheated to the tune of Rs.18.86 crores on the pretext of investment in stock market through WhatsApp Groups. It is submitted that out of cheated amount of Rs. 18.86 Crore, Rs. 2 Crores were transferred in the account of Katare Wheel Alignment and Service LLP. Thereafter, entire money was siphoned off on the same day through 90 different transactions. It is submitted that account



of Katare Wheel Alignment and Service LLP was opened by Akash Haridasbhai Katare, Nilesh Prabhakarabhai Patil, Viraj Rajendrabhai Petta. It is further submitted that during investigation, it was revealed that account was handled by Akash and Viraj. Account details were further given to accused Viraj Rajendrabhi Petta was also arrested on the instance of accused Akash from Ahmedabad on 12.12.24. Accused Viraj disclosed the name of his associate accused Manish R/o Udaipur and Vishal (also named as Shivam) to whom bank credentials /SIM was shared and he further used the account of Katare Wheel Alignment and Service LLP for receiving proceeds of crime to the tune of Rs. 2 Crores, Bank account credentials were sold by them in lieu of 2% commission of the transactions. It is further stated that 3 mobile phones and 3 cheque books of Canara Bank, IFDC Bank & Bank of Baroda and one envelop containing kit of bank account of Axis bank/ATM card/SIM of Airtel was and 2 ATM cards (Total 3 Mobiles, 3+1 Cheque Books, 3 ATM cards. and 1 SIM card) were recovered in the present case. It is further stated that accused Viraj when confronted with accused Manish Menariya and during interrogation revealed that he met Manish and Vishal @Shivam in Nadiyad around 26/27 October when he visited there with his friend Sumit Agarwal. One more person Jayesh was also with them accused Viraj called accused Akash Katare to bring bank account documents and SIM at Ahmedabad where Akash delivered account docs/Sim/User ID and Password etc to Vishal @Shivam and Manish through Viraj. The CDR analysis of accused corroborate the version of accused persons. It is further submitted that investigation of the case is pending and the same is under progress, co-accused are yet to be traced, evidence in the present case is fragile in nature and can be tempered remotely and the allegations are serious in nature and amount involved is Rs. 18.86 Crores. It is prayed that bail application of applicant/accused may be dismissed.



Record perused.

This Court, while considering granting bail to an accused has to note the following factors laid down by the Hon'ble Supreme Court in *Prasanta Kumar Sarkar Vs Ashis Chatterjee* (2010) 14 SCC 496; *State of Uttar Pradesh vs. Amaramani Tripathi* (2005) 8 SCC 21 and *Deepak Yadav Vs. State of Uttar Pradesh* (2022) 8 SCC 559:-

- a. whether there is any prima facie or reasonable ground to believe that the accused had committed the offence;
- b. nature and gravity of the accusation;
- c. severity of the punishment in the event of conviction;
- d. danger of the accused absconding or fleeing, if released on bail;
- e. character, behaviour, means, position and standing of the accused;
- f. likelihood of the offence being repeated;
- g. reasonable apprehension of the witnesses being influenced;
- h. danger, of course, of justice being thwarted by the grant of bail.

Although, the court is mindful of the fact that pre-trial detention is frowned upon by law, however, Court is conscious of the fact that in Cyber Crime direct evidence qua accused is rarely found. In the present case, the applicant/accused Akash Haridasbhai Katore played active role in the commission of crime by opening account and further handing over the same to other co-accused. Cyber criminal and cyber thugs do not deserve any leniency as they are wiping out entire life saving of innocent common citizens of this country on the pretext of investment in stock market. I find no merit in the contention of Ld. Counsel for applicant/accused that ground of arrest were not supplied to applicant/accused as same is part of the case file produced by the IO.

The issue of personal liberty is sacrosanct and is jealously guarded, while guarding the rights of the accused, the rights of the victim cannot be lost sight off.



Considering the facts and circumstances of the case, this Court is not inclined to allow the present bail application. **Accordingly, the bail application of applicant/accused Akash Haridasbhai Katare S/o Haridas Katare is hereby dismissed.**

Copy of this order be given dasti to all concerned. Copy of order be sent to the accused through concerned Jail Superintendent.



ATTESTED
[Signature]
Reader of "CMM" -ND

(Anuj Kumar Singh)
CJM/NDD/PHC/ND
22.01.2025
Chief Judicial Magistrate
26, G.F., Annexe Building
Patela House Courts,
New Delhi